

Sh. Hemant Chauhan S/O Sh. Rajpal Singh vs Ms. Meenu @ Anita W/O Sh. Hemant Chauhan on 26 February, 2021

IN THE COURT OF MS NEENA BANSAL KRISHNA
PRINCIPAL DISTRICT & SESSIONS JUDGE
SOUTH EAST: SAKET COURT, NEW DELHI

C.A. No. 184/2019

Sh. Hemant Chauhan S/o Sh. Rajpal Singh
R/o: House No. A-24, Baba Faridpur,
West Patel Nagar, New Delhi - 110008.

..... Appellant/ Respondent

VERSUS

Ms. Meenu @ Anita W/o Sh. Hemant Chauhan
R/o: House No. 411, 4th Floor, Kutia Wali,
Chhatarpur, New Delhi

..... Respondent/ Complainant

First date before this Court:	30.03.2019
Date of Decision:	26.02.2021

ORDER:

1 An appeal under Section 29 of The Protection of Women from Domestic Violence Act, 2005 (hereinafter referred as "the Act") has been filed by the Appellant/Respondent against the Ex- Parte Judgment dated 15.02.2018 vide which the Respondent/ Complainant has been granted monetary relief, compensation, Hemant Chauhan Vs. Meenu @ Anita protection and residence order under Section 12 of the Act in favour of the Respondent/Complainant.

2 The facts in brief are that complaint under Section 12 of the Act was filed by the Respondent/Complainant wherein she had stated that she belonged to Bihar and was married to one person and had two children from the said marriage. However, her husband became mentally disturbed and unable to understand anything. Consequently, with the intervention of the Panchayat, the marriage was dissolved with her first husband and she was free to get married again. The Complainant shifted to Delhi and met the Appellant who on the day of karwachauth in 2001 married her by putting sindoor on her forehead (maang). The Appellant took the Respondent to his parental home where she was accepted by the family members and they started living together as husband and wife.

3 According to the Respondent/Complainant, in the year 2014 Appellant/husband came in contact with one Ms. Simi Srivastava and the relations between them changed. She claimed that Appellant started giving her severe beatings and also making demand of Rs. 10 lacs or to leave the house. She got pregnant many times, but was compelled to undergo abortion. She was Hemant Chauhan Vs. Meenu @ Anita forcibly thrown out from the shared household. The Appellant also assaulted her when she caught the Appellant in compromising position with Ms. Simi Srivastava on 16.10.2016 opposite to District Courts, Saket, New Delhi. She made complaint to the police, though no action was taken. On 30.10.2016 she went to meet the Appellant/ Respondent at Home Saaj, Lajpat Nagar, New Delhi, but again was given severe beatings for which she made a complaint to the police. Since November, 2016 the Respondent visited the house of her in-laws many times to meet the Appellant but she was not allowed and was told that Appellant was residing elsewhere. She claimed to have been maltreated, misbehaved and humiliated by the Appellant/ Respondent.

4 The complainant has stated that she has been residing in a rented accommodation at Chhattarpur and is financially weak and has no source to maintain herself. She also asserted that the Appellant is working as an Accountant at Home Saaj, Lajpat Nagar, New Delhi and earning Rs. 15,000/- to Rs. 20,000/- per month. She made a prayer for protection order, order of residence, monetary relief and compensation.

5 The Appellant/Respondent was served by way of affixation for 09.11.2017 and was proceeded ex-parte as he failed to appear Hemant Chauhan Vs. Meenu @ Anita despite service. Ex-Parte Evidence was led by the Respondent/ Complainant. Ld. Metropolitan Magistrate on the basis of record and evidence allowed the petition and granted protection order under Section 18 of the Act by restraining the Appellant from communicating with the Respondent and also restrained him from alienating any assets, operating Bank Account or Locker held by the Appellant without the permission of the Court. The Appellant was also restrained from alienating disposing of the shared household or encumbering the same or renouncing his rights in the shared household under Section 19 (d) & (e) of the Act. The Appellant was also directed to pay the rental in the sum of Rs. 2,000/- per month for the alternative accommodation where complainant was residing. In addition, he was directed to pay Rs. 4,684/- per month (including rental amount) for maintenance under Section 20 of the Act and was also awarded compensation in the sum of Rs. 10,000/- under Section 22 of the D. V. Act. 6 Aggrieved by the said Judgment, the present appeal has been filed.

7 The Appellant has contended that no effective service was effected upon him and he has been wrongly proceeded ex-parte. It has been further argued that as per the statement of the Hemant Chauhan Vs. Meenu @ Anita Complainant herself her first marriage had not been annulled by any Court but by a Panchayat of which no cogent proof has been furnished. Moreover, as per her own submissions, she never got married to him according to Hindu Customs & Rites; in fact they never got married and never had any relationship of husband wife. She was working in the house of the Appellant's father as domestic maid and had been allowed to stay in the home because of her sufferings. The parents of the Appellant/Respondent treated her with love and affection like their own daughter but she became greedy and developed ill intentions and with ulterior motives has filed the present complaint against him. The Appellant has also claimed that they were not residing together as husband and wife since he has wife and two children, who are residing with him. 8 It is

further submitted that the Respondent had claimed to be an illiterate woman, but her signatures on various documents would clearly refute her claim. Furthermore, she has mentioned her name as Meenu @ Anita, but her the name has been shown as Meenu Kumari on Ration Card and as Meenu on the Aadhaar Card. No document has been produced by her reflecting her name as Anita. It establishes that she is residing in Delhi under an assumed name. Furthermore, she has relied upon the Hemant Chauhan Vs. Meenu @ Anita unregistered Rent Agreement executed on 22.06.2017 showing the period of tenancy from 10.12.2016 till 09.11.2017. It is evident on its face that it is a fabricated document created for the purpose of filing of the complaint. The FIR that has been registered against him on 05.11.2016 was delayed by 05 days for which there is no explanation. It is asserted that the Respondent in proof of marriage had relied upon two morphed photographs, originals of which have also been taken back by her. The entire case of the Complainant rests on her sole testimony which is not corroborated by any cogent document. Her own depositions prove that she was never the legally wedded wife of Appellant and therefore is not entitled to any relief under the Act. The impugned judgment is therefore liable to be set-aside.

9 Ld. Counsel on behalf of the Appellant has argued that he was neither in a live-in relationship nor was he ever married to the complainant. The documents relied upon by the Respondent are manipulated and have not been appreciated by the Ld. MM in the right perspective. The Ration Card Mark-A gives the name of Meenu Kumari, daughter of Sh. Rajpal Singh (father of the appellant) i.e. sister of the Appellant. The Complainant to show herself to be residing in the house of the Appellant had cleverly Hemant Chauhan Vs. Meenu @ Anita claimed that her name Meenu Kumari features in the Ration Card though the name in the Ration Card is of his sister with the same name. Likewise, the Rent Deed was executed for 2016-2017 on the Stamp paper purchased in the year 2017 and the present complaint case has been filed within 20 days of execution of this lease deed, which clearly reflects that it has been fabricated only for the purpose of creating jurisdiction.

10 It is further argued that the Appellant was already married and residing with his wife and two children and at no point of time was he in any kind of domestic relationship with the Respondent/Complainant. The impugned Judgment is not based on correct appreciation of facts and documents and is liable to be set-aside.

11 Ld. Counsel for the Complainant has argued that she has been in domestic relationship with the Appellant from the year 2001 till 2016. The marriage had taken place in a temple and thereafter they started residing as husband and wife. This is also established from ESIC Card in which she has been shown as wife of the Appellant. Moreover, Appellant was duly served with the summons of the Court, but instead of appearing and contesting the proceedings, he kept a watch from outside the Court and has now Hemant Chauhan Vs. Meenu @ Anita filed this Appeal with ulterior motive. More than Rs. 10 lacs are due in the Execution Proceedings which he has failed to pay. It is submitted that the present Appeal is without merit and is liable to be dismissed.

12 Written submissions on similar lines has also been filed by the counsel for the Appellant.

13 I have heard the arguments and perused the record. My observations are as under:

14 The Appellant has challenged the impugned Judgment on the ground that he was never served with the summons and has been wrongly proceeded ex-parte. In so much as this grievance is concerned for proceeding ex-parte against him, he should have moved the application under Order 9 Rule 13 CPC to establish his non-service to get the ex-parte judgment set aside. His non- service cannot be agitated by way of the present Appeal and the defence of the appellant cannot be considered and the challenge to the impugned judgment is confined only to the merits of the Judgment on the basis of evidence of complainant. 15 The respondent Meenu @ Anita has filed a petition under Section 12 of the Act seeking all the reliefs available in the Act. In Hemant Chauhan Vs. Meenu @ Anita order to be successful in a petition under the Act, three basic requirements have to be proved which are:

- (i) Existence of a domestic relationship;
- (ii) the residence of the respondent in a shared household; and
- (iii) the wife/respondent was subjected to domestic violence.

(i) Domestic Relationship:

16 The first requirement to be satisfied is whether the parties were in a Domestic relationship.

17 Section 2F of the Act defines Domestic Relationship to mean a relationship between two persons who live or have, at any point of time, lived together in a shared household and may be related by consanguinity marriage or through a relationship in a nature of marriage.

18 The case of the complainant is that her first marriage was annulled by the Panchayat in Bihar and thereafter she came to Delhi where she got acquainted with appellant who eventually married her in 2001 and they started living as husband and wife. According to her, the marriage was performed on the day of karwachauth by putting sindhoor in her maang. They lived together Hemant Chauhan Vs. Meenu @ Anita from 2001 to 2016.

19 The Complainant has herself claimed that her first marriage had been dissolved with the intervention of the Panchayat, but neither any document of Panchayat nor any cogent proof in this regard has been produced. The Complainant has also not submitted or proved that there was any custom in their community for dissolution of marriage through Panchayat. No evidence has been led to prove the dissolution of first marriage. 20 Section 5 Hindu Marriage Act, 1955 lays down the conditions for valid marriage amongst two Hindus; the first condition being that neither party should have a living spouse at the time of marriage. This first condition itself stands breached according to the testimony of the complainant herself. 21 Further, Section 7 Hindu Marriage Act, 1955 provides the ceremonies to be performed for a Hindu Marriage of which may be solemnized according to the customary rites and ceremonies of either party and where rites and customs include saptapadi, then the marriage becomes complete on taking the seventh step. 22 It is the case of the Complainant herself that they got married in a temple by Appellant putting sindoor in her forehead (maang). The testimony of the Complainant herself establishes that marriage has

not been performed in accordance with Section 7 of the Hindu Marriage Act. It is also in violation of Section 5 of the Hindu Marriage Act, which provides monogamous status of both the parties at the time of marriage. There is no valid marriage between the parties.

23 The Protection of Women From Domestic Violence Act, 2005 is a futuristic piece of legislation which seeks to protect not only the wives from marital abuse but also extends protection to those living in a relationship in the nature of marriage. What thus needs to be examined is whether there exists a relationship in the nature of marriage between the parties.

24 The Complainant had deposed that after her alleged marriage with the Appellant in 2001 she came to reside as his wife in his house and was accepted by his parents and the family members. The appellant by way of this appeal has asserted that she had been living in their house and getting affection of his parents as the maid servant and not as his wife. Though as noted above this defence of the appellant cannot be considered but the complainant was required to prove the domestic relationship by independent cogent evidence.

25 The complainant had proved the photographs of the parties Ex.CW1/1 and the Ration Card Mark A to establish that they were in a domestic relationship, even though they may not have been legally wedded husband and wife. The two photographs Ex.CW1/1 relied upon by the complainant have apparently been taken in a studio showing her standing along with the appellant. These photographs in no way can lead to any inference of them being in a domestic relationship.

26 Further more, the ration card on which reliance has been placed was Mark A and has not been proved. Even then, the perusal of the ration card shows that there is a mention of Meenu Kumari daughter of Sh. Rajpal Singh (who is the father of the appellant) and the relationship has been shown as daughter. The respondent has rightly pointed that the name in the ration card is of his sister and not of the complainant as claimed by her. The ration card Mark A does not show the name of the respondent. The Ld. M.M has thus, fallen in error in concluding that her name occurs in the Ration Card.

27 Ld. M.M has rightly observed that they are not related through marriage or consanguinity. However, he has failed to appreciate the documents relied upon by the complainant to conclude about the existence of relationship in the nature of marriage between them. To come to this conclusion there should have been some cogent evidence. The documents relied upon by the respondent have not been proved according to law and also not been considered by the Ld. M.M in the right perspective.

(ii) Shared Household:

28 The second aspect is whether they were living in a shared household. For this the Ld. M.M has relied upon the Ration Card of the father of the respondent Mark A. As already noted above, it is neither shown that she was living with the appellant in a domestic relationship or was residing in the house of the father of the appellant treating it to be a shared household. 29 The respondent has proved her Voter's I Card CW1/2 wherein she has shown as wife of appellant Hemant Chauhan and

resident of the A-22, Tajpur Pahari, Badarpur, Delhi which is the house where the appellant's father is residing. But the respondent herself has relied upon the ESIC Card of the appellant Ex.CW1/3 in which he has been shown as residing of F8, 2 nd Floor, Kalka Ji, New Delhi. Also she has failed to produce the records from the Department showing her as the wife; the Card Ex CW1/2 does not have any mention of complainant as the wife though it has a photograph of a lady along with appellant. Best evidence would have been the records from the Department which has not been summoned.

30 The complainant has not produced the best evidence and the documents relied upon by her is not the best evidence which should have been produced by her to prove the domestic relationship with the appellant.

(iii) "Domestic Violence"

31 The third aspect which needs to be proved is that there was Violence caused to the respondent. The term "Domestic Violence" has been defined under Section 3 to mean any conduct, commission or omission of an act which:

(a) harms or injures or endangers the health, safety, life limb or well-being whether mental or physical, of the aggrieved person or tends to do so and includes causing physical abuse, sexual abuse, verbal and emotional abuse and economic abuse; or

(b) harasses, harms, injures or endangers the aggrieved person with a view to coerce her or any other person related to her to meet any unlawful demand for any dowry or other property or valuable security; or

(c) has the effect of threatening the aggrieved persons or any person related to her by any conduct mentioned in clause (a) or clause (b); or

(d) Otherwise injures or causes harm, whether physical or mental, to the aggrieved person.

32 Explanation 1 defines the physical abuse to be an act of bodily harm or danger to life or limb. Verbal and emotional abuse has been defined to include insult, ridicule, and humiliation essentially with regard to not having a child or a male child or repeated threats to cause physical pain.

33 Ld. M.M herself has noted that though the complaint had placed on record a complaint dated 30.05.2017 Ex.CW1/5 and copy of NCR Mark B wherein the allegation of physical violence had been made but no MLC has been put on record to explain physical injury. Ld. M.M herself had observed that no complaint in regard to domestic violence has been proved by the complainant but concluded that mental injuries were proved by the alleged acts of the respondent. The physical violence is held to be not proved and it is difficult to comprehend as to on what evidence has the conclusion of mental harassment has been drawn. The Ld. M.M has failed to appreciate the testimony of the respondent in the right perspective to conclude if domestic violence as envisaged in the Act had

actually been perpetuated. The foundational requirements have not been determined on cogent evidence by the Id.MM and the findings on these aspects need to be re appreciated and determined afresh.

34 Furthermore, the appellant has been restrained from communicating with the complainant and also from alienating any assets, operating bank account or locker held by the parties under Section 18 of the Act. To pass such a sweeping order there should have been some evidence in regard to the bank lockers and assets. In the absence of any such evidence, the finding of the Court is liable to be set aside. The appellant has also been restrained from alienating or disposing of the shared household under Section 19 of the Act. There is not an iota of evidence about the appellant having any interest or share in the property or there was any likelihood or apprehension of his renouncing or alienating the same. This relief again is not based on any cogent evidence and no explanation or reasons have been given while granting this relief. The Appellant has also been given monetary relief and directed to pay maintenance in the sum of Rs.4684/- per month including the rent in the sum of Rs.2,000/- which the respondent is claiming to be presently paying for the tenanted premises under S. 20 of the Act. The complainant had placed reliance on a rent agreement Mark C which on the face of it appears to have been created for this petition. No finding on this aspect has also been given. No cogent reasons have been given for grant of compensation in the sum of Rs 10,000/- as well. 35 Considering that the impugned judgment is based on erroneous appreciation of documents and is without cogent reasons, the impugned judgment is set aside. However, prima facie the respondent is claiming to be in domestic relationship and is claiming to have been residing with the appellant since 2001 to 2016. In the light of her assertions of the complainant in her petition coupled with the fact that the appellant has chosen not to appear before the Ld. MM, the maintenance in the sum of Rs.4,684/- inclusive of rent in the sum of Rs.2,000/- is directed to be continued to be paid to the appellant by way of interim maintenance till the disposal of the petition. 36 The case is remanded back to be decided afresh and the complainant may be given an opportunity to lead additional evidence. However, the appellant shall continue to pay Rs.4684/- as interim maintenance till the disposal of the petition by the Ld. M.M. 37 In view of the above, the present appeal is, allowed. A copy of this order along with the Trial Court Record be sent back. Appeal file be consigned to record room.

ANNOUNCED in the open Court (Neena Bansal Krishna) today on 26th day of February, 2021
Principal District & Sessions Judge South-East, Saket Courts New Delhi.